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LOURDES BELTRAN v. CARLOS OCHOA

CASE NO.: 23NWCV03670

HEARING: 07/09/2026 @ 10:30 AM

#17

TENTATIVE ORDER

Defendant Carlos Ochoa's motion for summary judgment is
GRANTED.

Moving party to give notice.

Defendant Carlos Ochoa moves for summary judgment as to the
first amended complaint (FAC).

Background

On November 13, 2023, Plaintiff Lourdes Beltran (Plaintiff) filed this action against Defendant and Does 1 to 25. On January 22, 2025, Plaintiff filed the operative FAC against Defendant, Emily Mercado (Emily), Richard Mercado (Richard), and Does 1 to 25 (collectively, Defendants).

This action arises out of a dog bite. The FAC alleges that on April 27, 2022, Plaintiff was at 5225 Wood Avenue, South Gate, California 90280, to deliver food to Defendants. (FAC, ¶¶ 9-11.) While on the property, a

dog owned by Defendants (Dog) “charged Plaintiff and bit him” resulting in injuries to Plaintiff. (FAC, ¶¶ 12-13.) The FAC asserts two causes of action: (1) strict liability and (2) negligence.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment, courts apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

In moving for summary judgment, a defendant has the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) A defendant must support the motion “with evidence including ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of... judicial notice.’” (*Aguilar*, supra, 25 Cal.4th at p. 855, citing Code Civ. Proc., § 437c, subd. (b).)

Once a moving party has satisfied the initial burden of proof, “the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119, see also Code Civ. Proc., § 437c, subd. (c).) Courts “liberally

construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1127.)

Evidentiary Objections

Defendant makes 26 evidentiary objections to Plaintiff's evidence. The Court rules as follows:

OVERRULED: 1,
3, 9, 13

SUSTAINED: 2, 4, 5, 6, 7, 8, 10,
11, 12, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26

Defendant additionally objects to the format of Plaintiff's evidence on the grounds that it exceeds 25 pages but was not separately bound with a table of contents. (See Cal. Rules of Court, rule 3.1350 [“If evidence in support of or in opposition to a motion exceeds 25 pages, the evidence must be separately bound and must include a table of contents.”].) The Court acknowledges this error by Plaintiff and admonishes Plaintiff. The Court, in its discretion, proceeds to rule on the merits of this motion.

Undisputed Material Facts

The following facts are undisputed: Defendant owns the property located at 5225 Wood Avenue, South Gate, California 90280, at which there are two houses. (UMF, ¶¶ 1-2.) The front residence, 5227 Wood, South Gate, California 90280 (Subject Property), is the property on which the subject incident occurred. (UMF, ¶ 3.) The back residence is where Defendant resides. (UMF, ¶ 4.) Emily and Richard lease the Subject Property from Defendant. (UMF, ¶ 5.) The lease (Lease) contains a no-pet clause. (UMF, ¶ 6.) Prior to the subject incident, Emily obtained a Chihuahua (Dog). (UMF, ¶ 7.) On April 27, 2022, Plaintiff was working for Uber Eats and delivering food to individuals who placed an order. (UMF, ¶ 10.)

Discussion

Defendant moves for summary judgment as to Plaintiff's FAC on the grounds that Plaintiff cannot establish Defendant owned the Dog or had

actual knowledge of the Dog's alleged dangerous propensities.

First

Cause of Action - Strict Liability

Civil Code section 3342, or the dog bite statute, provides: "The owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner's knowledge of such viciousness." "[T]he statute is designed 'to prevent dogs from becoming a hazard to the community' [citation] by holding dog owners to such a standard of care, and assigning strict liability for its breach." (Priebe v. Nelson (2006) 39 Cal.4th 1112, 1120.)

Additionally, as to common law strict liability, "[a] person, although not the owner of a vicious dog, may make himself liable to others by knowingly keeping or harboring the dog upon his premises, after knowledge of his vicious propensities." (Buffington v. Nicholson (1947) 78 Cal.App.2d 37, 42, emphasis in original.) "The owner of an animal is the person to whom it belongs. Whether or not a person is a keeper depends upon the peculiar facts and circumstances of each individual case. A man may own an animal and yet not be its keeper. The word 'keeper' is equivalent to 'the person who harbors.' Harboring means protecting. So one who treats a dog as living at his house, and undertakes to control his actions, is the owner or keeper within the meaning of the law; but the casual presence of an animal on his premises, if not so treated, does not constitute him such owner or keeper." (Ibid.)

Here, it is undisputed that Emily acquired the Dog. (UMF, ¶ 7.) Defendant additionally points to his declaration, deposition testimony, and responses to special interrogatories to show that he did not own, harbor, or control the Dog. (UMF, ¶ 9.) Based on the foregoing, Defendant meets his initial burden in showing that he is not subject to strict liability as he did not own, harbor, or control the Dog.

Plaintiff's

Opposition

In opposition, Plaintiff argues that there are triable issues of material fact as to whether Defendant harbored the Dog.

Plaintiff shows that it is undisputed that Defendant owned the entire lot in which the subject incident occurred. (UMF, ¶ 1; P-UMF, ¶ 1.) Plaintiff cites Emily's deposition testimony stating that the Mercados' tenancy at the Subject Property has lasted at least 18 to 19 years and the Mercados' and Defendant's families consider one another friends. (P-UMF, ¶ 1.) Plaintiff presents evidence that Defendant, as landlord, knew that Emily had the Dog in the Subject Property in violation of the Lease. (P-UMF, ¶¶ 2-4.) Specifically, Plaintiff refers to Defendant's deposition testimony stating that he was aware the Mercados owned a dog prior to April 27, 2022, had seen the Dog, knew the Dog was a Chihuahua, and had heard the Dog bark once a week. (P-UMF, ¶ 6.)

Plaintiff also refers to Defendant's deposition testimony to show that Defendant knew that the Mercados owning the Dog was in violation of the Lease but did not take action to inform them of the Lease violation and only made verbal warnings regarding the Dog after 2023. (P-UMF, ¶ 5.) Plaintiff also refers to "Beware of Dog" signs on the Subject Property. (P-UMF, ¶ 2.) Plaintiff points to Defendant's deposition testimony in which he states he put the "Beware of Dog" sign up twenty years ago when he had a dog; however, he stated that dog died fifteen years ago but he left the sign up despite only getting a new dog six months prior to the deposition. (P-UMF, ¶ 2; Defendant's Depo., 18:15-25–20:1-3.)

Based on the foregoing facts, Plaintiff argues that a reasonable jury could infer that Defendant harbored the Dog from the facts that Defendant kept the Beware of Dog signs posted for a fourteen-year period in which he did not have his own dog and failed to exercise his right to remove the Dog under the Lease.

Here, it is clear that Defendant did not own the Dog for purposes of strict liability under Civil Code section 3342. The Court notes that the FAC only alleges a statutory strict liability cause of action, not a common law strict liability cause of action. (FAC, ¶ 18.) However, both parties address common law strict liability in their briefs, and thus the Court will address it.

In reply, Defendant takes issue with Plaintiff's citation to *Buffington*, by arguing that it is outdated and distinguishable. However, the Court notes that in *Buffington*, the Court of Appeal defined the term "harbor," a term used by Defendant. (Mot., 8:13-24; *Buffington*, supra, 78 Cal.App.2d at p. 42.) Moreover, while Defendant urges the Court follow *Priebe*

instead, Defendant does not show how Priebe contradicts Buffington.

In Priebe, the Supreme Court of California addressed “[t]he narrow question...whether the veterinarian’s rule should...bar a kennel worker’s strict liability claim against a dog owner under section 3342 for injuries sustained from a dog bite or attack while the worker was caring for the owner’s dog boarded at the kennel.” (Priebe, supra, 39 Cal.4th at p. 1115.) In Priebe, the Supreme Court discussed common law strict liability under facts in which ownership was not in question. (Id., at p. 1115.) In Priebe, the High Court explains “[a] common law strict liability cause of action may also be maintained if the owner of a domestic animal that bites or injures another person knew or had reason to know of the animal’s vicious propensities.” (Ibid., citing BAJI No. 6.66 [noting “an owner or keeper of an animal has reason to know of the vicious or dangerous traits...”].)

Plaintiff’s evidence does not raise a triable issue of material fact as to whether Defendant owned, harbored, or kept the Dog. Plaintiff’s evidence establishes Defendant’s knowledge of the Dog’s existence and that it was owned by Emily in the Mercados’ residence within the property that he owned. However, Plaintiff does not present facts indicating that Defendant “treats a dog as living at his house, and undertakes to control his actions.” (Buffington, supra, 78 Cal.App.2d at p. 42.)

Based on the foregoing, Plaintiff does not raise triable issues of material fact as to the first cause of action.

Second

Cause of Action - Negligence

The elements for a cause of action for negligence are “(1) a legal duty to use due care; (2) a breach of that duty; (3) a reasonably close causal connection between that breach and the resulting injury; and (4) actual loss or damage.” (Ahern v. Dillenback (1991) 1 Cal.App.4th 36, 42.) “Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property.” (Civ. Code, § 1714.)

“[I]t is well established that a landlord does not owe a duty of care to protect a third party from his or her tenant’s dog unless the landlord has actual knowledge of the dog’s dangerous propensities, and the

ability to control or prevent the harm.” (Chee v. Amanda Goldt Property Management (2006) 143 Cal.App.4th 1360, 1369.) “Because the harboring of pets is such an important part of our way of life and because the exclusive possession of rented premises normally is vested in the tenant, we believe that actual knowledge and not mere constructive knowledge is required.” (Uccello v. Laudenslayer (1975) 44 Cal.App.3d 504, 514.) “[A] landlord is under no duty to inspect the premises for the purpose of discovering the existence of a tenant's dangerous animal; only when the landlord has actual knowledge of the animal, coupled with the right to have it removed from the premises, does a duty of care arise.” (Ibid.)

Defendant argues that Plaintiff cannot establish that Defendant had actual knowledge of the Dog's dangerous propensities.

Defendant first cites to his own deposition testimony and declaration stating that he was not aware of any aggressive behavior by the Dog and was never informed of any complaints or prior incidents involving the Dog. (UMF, ¶ 13.) Defendant puts forth Emily's responses to requests for admissions, set one, admitting that at the time of the subject incident, she was not aware her Dog had a vicious nature, disposition, or propensity. (UMF, ¶ 14.) Defendant shows Emily admit to not being aware of any other prior incident involving her Dog attacking, biting, or lunging at another person. (UMF, ¶ 14.) Defendant shows Emily admit she did not notify Defendant that her Dog had a vicious nature, disposition, or propensity and that Defendant did not have actual knowledge of the same prior to the subject incident. (UMF, ¶¶ 14-15.)

Defendant additionally relies on Plaintiff's factually devoid discovery responses to show that Plaintiff does not and cannot reasonably possess evidence to support her claim. A defendant moving for summary judgment may show that a plaintiff cannot establish an element of a cause of action “by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar, supra, 25 Cal.4th at p. 854.) Therefore, “[c]ircumstantial evidence supporting a defendant's summary judgment motion ‘can consist of “factually devoid” discovery responses from which an absence of evidence can be inferred,’ but ‘the burden should not shift without stringent review of the direct, circumstantial and inferential evidence.’” (Andrews v. Foster Wheeler LLC (2006) 138 Cal.App.4th 96, 101, citation omitted.)

Defendant refers to Plaintiff's responses to special

interrogatories, set one, nos. 1, 4, 7, 10, 13, 16, 19, 22, 25, 28, and 45 which requested Plaintiff state facts to support that she was injured as a result of Defendant's negligence; to support how Defendant negligently failed to own or maintain the Subject Property; to support how Defendant had a duty to maintain, control, or secure the Dog; to support how Defendant knew of the Dog's vicious nature, disposition, or propensity; or to support how he had a duty to warn. (UMF, ¶ 17.) In response to all the aforementioned requests, Defendant shows that Plaintiff put forth boilerplate objections and repeated the following, in part:

On April 27, 2022, Plaintiff was at or about 5225 Wood Avenue, South Gate, California 90280. Plaintiff was lawfully upon the private property to perform a duty by invitation pursuant to Civ. Code § 3342. More specifically, Plaintiff was lawfully upon the private property to deliver food to Defendant. While on the property, a canine/dog owned by Defendants ("Dog") charged Plaintiff and bit him. As a proximate and foreseeable result of the attack, Plaintiff suffered severe and painful physical injuries to areas of her body, some of which are permanent. She needed and needs continuing treatment and therapy, including but not limited to pain management, and psychotherapy.

(UMF, ¶ 18.)

Here, the Court finds that Defendant meets its burden in establishing that he did not have knowledge of the Dog's vicious propensities prior to the subject incident. Independently, through Plaintiff's discovery responses, Defendant also shows that Plaintiff cannot establish Defendant's actual knowledge. "If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses." (Andrews, *supra*, 138 Cal.App.4th at p. 107.) Defendant shows that Plaintiff's responses merely restate the allegations of the pleadings and are not particular to any specific interrogatory.

Therefore, Defendant meets its initial burden in showing that Plaintiff cannot establish Defendant's actual knowledge.

Plaintiff's

Opposition

Plaintiff argues that the cumulative weight of her evidence creates a triable issue of material fact.

To raise a triable issue of material fact as to whether Defendant had actual knowledge, Plaintiff presents the same evidence regarding the “Beware of Dog” sign as discussed above. (P-UMF, ¶ 2.) Plaintiff contends that keeping this sign up despite not having his own dog for a fourteen-year period shows that Defendant knew of the Dog’s dangerous propensities.

Plaintiff also puts forth Defendant’s deposition testimony stating that he was informed by “the insurance” that the Dog had bit someone. (Defendant’s Depo., 24:22-25 – 25:1-7.) Plaintiff also shows Defendant’s deposition testimony stating he heard the Dog bark once a week. (P-UMF, ¶ 6.)

Plaintiff also attempts to raise Emily’s amended responses to requests for admissions, set one. The Court sustained Defendant’s evidentiary objection to this evidence. The Court briefly addresses this evidence. As raised by Defendant in reply, “[a] party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.” (Code Civ. Proc., § 2033.300, subd. (a).) The Court may only grant the amendment under certain requirements. (See Code Civ. Proc., § 2033.300, subd. (b).) The record does not show that this Court ever granted leave to amend Emily’s initial discovery responses. Therefore, evidence of purported amended responses in which admissions were changed is inadmissible.

Lastly, Plaintiff puts forth her own deposition testimony stating that in 2013, she verbally asked Defendant’s late wife to fill a gap in a chain link fence to keep her Dog inside. (P-UMF, ¶ 3.) Plaintiff argues this evidence shows that Defendant’s household was aware the Dog needed to be restrained and the existing fencing was inadequate.

Here, Plaintiff does not controvert with admissible evidence that Defendant was ever notified or made aware of the Dog’s vicious nature, disposition, or propensity. As raised by Defendant in reply, Plaintiff does not show that the insurance notification regarding the bite predated the subject incident or arose out of the subject incident. Even looking at the evidence favorably to Plaintiff, as required on summary judgment, a reasonable inference

is that the insurance notification arose out of the subject incident, as Emily admitted to not being aware of any other prior incident involving her Dog attacking, biting, or lunging at another person. (UMF, ¶ 14.)

“[A]ctual knowledge can be inferred from the circumstances only if, in the light of the evidence, such inference is not based on speculation or conjecture. Only where the circumstances are such that the defendant ‘must have known’ and not ‘should have known’ will an inference of actual knowledge be permitted.” (Uccello, *supra*, 44 Cal.App.3d at p. 514, n. 4.) “An issue of fact can only be created by a conflict of evidence. It is not created by ‘speculation, conjecture, imagination or guess work.’ [Citation.] Further, an issue of fact is not raised by ‘cryptic, broadly phrased, and conclusory assertions’ [citation], or mere possibilities [citation].” (Yuzon v. Collins (2004) 116 Cal.App.4th 149, 166, citation omitted.) Evidence regarding the failure to remove the “Beware of Dogs” sign when Defendant no longer owned a dog and that Defendant testified to hearing barking is speculative and supports a finding of constructive notice, at most. Therefore, the Court finds that Plaintiff does not raise triable issues of material fact as to whether Defendant had actual notice.

Accordingly, Defendant’s motion for summary judgment is GRANTED.